

25STCV37806 25STCV37806

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 25STCV37806 Hearing Date: August 20, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 20, 2026

Case Name: Dominguez, et al. v. FCA US,
LLC, et al.

Case

No.: 25STCV37806

Matter: Motion to Compel Initial Disclosures Pursuant to
Code of Civil Procedure section 871.26

Moving

Party: Plaintiffs Ricardo

Dominguez and RidgeValley Roofing, Inc.

Responding Party: Defendant FCA US LLC

Tentative

Ruling: Plaintiff's motion for
initial disclosures is denied.

Plaintiffs

Ricardo Dominguez and RidgeValley Roofing, Inc. ("Plaintiffs") filed their
action against FCA US, LLC ("FCA"), Central Valley Chrysler Jeep Dodge Ram, and

Does 1 through 10. The Complaint alleges that on January 20, 2010, Plaintiff purchased a 2019 Ram 1500 vehicle identification number 1C6RR7KM3KS751419. The Complaint alleges six causes of action for: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement concealment.

Plaintiffs move to compel FCA's compliance with initial disclosures and for mandatory sanctions to be imposed on FCA's Counsel in the amount of \$2,500. FCA opposes.

Legal Standard

"For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement." *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546 [italics in original]. Generally, all unprivileged information that is relevant to the subject matter of the action is discoverable if it would itself be admissible evidence at trial or if it appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc. § 2017.010; *Schnabel v. Superior Court* (1993) 5 Cal.4th 704, 711.)

Code Civ.

Proc. § 871.26 "only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20." (Code Civ. Proc., § 871.26, subd. (a).) "Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).)

Sanctions

are mandatory "unless the party failing to comply with this section shows good cause." (Code Civ. Proc., § 871.26, subd. (j).)

Analysis

Plaintiffs

move to compel FCA to comply with its initial disclosures and to request monetary sanctions against FCA and its counsel of record in the amount of \$2,500.

Here,

the 60-day deadline to serve initial disclosures began to run when FCA filed its Answer to the initial pleading on March 3, 2026. Code of Civil Procedure section 871.26, subdivision (h), lists the documents a manufacturer must provide to all parties in an action. (Code Civ. Proc., § 871.26, subd. (h).) Code of Civil Procedure section 871.26 imposes a mandatory disclosure requirement. FCA contends that it produced initial disclosures on May 1, 2026, prior to the May 2, 2026, deadline.

Plaintiffs

argue that FCA failed to serve verifications with its document production. However, Code of Civil Procedure section 871.26, subdivision (h), does not require verifications or written initial disclosure, as in Code of Civil Procedure section 2016.090. The statute requires only that FCA provide the listed documents. (Code of Civil Proc., § 871.26, subd. (h).)

Thus,

Plaintiff's motion is denied.

Conclusion

Plaintiff's motion for initial

disclosures is denied. Plaintiff's motion for sanctions is denied